



A Subsidiary of ZESA Holdings (Pvt) Limited

MEMORANDUM OF AGREEMENT MADE AND ENTERED INTO

BY

**ZIMBABWE ELECTRICITY TRANSMISSION & DISTRIBUTION COMPANY (PRIVATE)
LIMITED-HARARE REGION**

AND

.....

FOR

PROVISION OF VEHICLE HIRE SERVICES

1. The Parties

This Agreement is made and entered into by and between;

Zimbabwe Electricity Transmission & Distribution Company (Private) Limited, a company duly registered as such in terms of the laws of Zimbabwe (hereinafter referred to as "ZETDC", which expression shall include its assignees and successors in title, with its duly registered offices at Electricity Centre, 25 Samora Machel Avenue, Harare.

And,

..... ID No. who resides at
No..... hereinafter referred to as the Vehicle Hire Service Provider (VHSP)

2. Preamble

Whereas:

A. The Vehicle Hire Service Provider is the rightful owner / authorised representative of a vehicle with the following details:

Make.....

Reg.....

Chassis No.....

Engine No.

Colour

B. And whereas the VHSP has agreed to let the vehicle to ZETDC who have agreed to hire same;

Now therefore the Parties hereby agree as follows:

1. That the vehicle shall be hired for ZETDC operations which include but are not limited to revenue collection, fault repairs, meter reading, new connections and transporting employees.
2. The vehicle shall be hired fordays fromto
3. The Service Provider shall provide his or her own driver unless there is prior arrangement in writing by the owner.

4. The driver shall have a clean class 4 drivers licence for 1tonne trucks/ passenger vehicles and class 2 drivers licence for 7tonne trucks.
5. That ZETDC will supply fuel at the rate of 10 km per litre for 1 tonne trucks and passenger vehicles and 3.5km per litre for 7 tonne trucks.
6. The cost of insurance and any liability that arise from use of vehicle during hire, shall be borne by the Service Provider.
7. That a daily rate, payable at the prevailing interbank rate, shall be paid to the transporter after provision of required service as per attached schedule.

8. GOVERNING LAW

This agreement shall be governed by, and interpreted in accordance with, the laws of the Republic of Zimbabwe.

9. Breach

If any party to this Agreement commits any breach of the terms of this Agreement and fails to remedy such breach within 14 (fourteen) days after receipt of written notice calling upon it to do so, then without prejudice to the rights accorded to the aggrieved party in terms of this Agreement or according to law, the aggrieved party shall be entitled to either cancel this Agreement or to claim specific performance, in either event, without prejudice to its right to claim damages.

10. Dispute Resolution

- 10.1 In the event of any dispute or difference arising between the parties in relation to any matter pertaining to this Agreement, then such dispute shall be referred to a single arbitrator whose decision shall be final and binding upon the parties.

If the dispute in issue is:

- a) Primarily an accounting matter – Then the Arbitrator shall be an Accountant of not less than ten years' experience duly registered as such pursuant to the provisions of the Accountants Act and shall be appointed by agreement between the parties, or failing such agreement by the Chairman or President of the Zimbabwe Institute of Accountants for the time being;
- b) Primarily a legal matter – Then the Arbitrator shall be a Lawyer of not less than 10 years standing, who shall be appointed by agreement between the parties, or failing such agreement, by the Chairman of the Law Society of Zimbabwe.

- 10.2 The Arbitrator shall conduct such proceedings at such places in Zimbabwe as he, in his discretion may decide.
- 10.3 The decision of the Arbitrator shall be carried into effect and may be made an order of a court of competent jurisdiction at the instance of any, or either, of the parties.

- 10.4 This clause constitutes an irrevocable consent by each of the parties to any proceedings in terms of this clause and none of the parties shall be entitled to withdraw there from or claim, at any such proceedings that it is not bound by this clause.
- 10.5 The Arbitrator shall be entitled to make a determination as to which party or parties shall bear the costs of the Arbitrator and of the proceedings.
- 10.6 Notwithstanding anything to the contrary contained in this clause, the parties shall not be precluded from approaching any court of competent jurisdiction for urgent relief in the form of an interdict or otherwise.

11. CONFIDENTIALITY

It is recorded that the terms of this Agreement, and any and all details of the service to be rendered by the Aggregator to ZETDC is confidential, and neither party shall without the prior consent (the consent thereof shall not be unreasonably withheld) of the other disclose any information to any third party pertaining to this Agreement or the service, unless such information is required to be disclosed by law.

12. Entire Agreement

This Agreement constitutes the entire Agreement between the Parties and no variation, modification or waiver of this Agreement shall be effective unless agreed to, confirmed in writing and signed by both Parties.

In witness whereof the two parties have set their hands in the presence of the under mentioned witnesses;

This done and signed in the presence of the undersigned witnesses:

ON THISDAY OF.....2023.

FOR AND ON BEHALF OF ZETDC

Signature:

Designation:

WITNESSES:

FOR AND ON BEHALF OF THE VEHICLE HIGHER SERVICE PROVIDER

Signature:

Designation:

WITNESSES: